W012571-042026 - California Public Records Request

Message History (3)

On 4/21/2026 6:04:28 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012571-042026
Body:
RE: PUBLIC RECORDS REQUEST of April 20, 2026, **Reference # W012571-042026**

Dear Brian C,

The City received the following records request from you on April 20, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context: In response to PRA W012198-022326 (closed March 3, 2026), the Department stated: "the Department does not currently have the associated SOPs posted on its website. We acknowledge this oversight and are actively working to ensure the SOPs are published as soon as possible." SOP 205.1 requires that "This Operating Procedure, along with SMPD Lexipol Policy 462, shall be posted conspicuously on our Department website." Civil Code § 1798.90.51(b) imposes a parallel conspicuous-posting obligation on the agency's usage and privacy policy. As of April 20, 2026, the Department's License Plate Readers page at cityofsanmateo.org/3211/License-Plate-Readers links only to the full policy manual; SOP 205 is not linked from that page, nor is it returned by a site-wide search of cityofsanmateo.org.

Records requested:

1. The current URL at which SOP 205 is posted on the San Mateo Police Department or City of San Mateo website. If SOP 205 is still not posted as of the date this request is processed, please confirm that. Responsive: https://www.cityofsanmateo.org/4331/Accountability

2. If SOP 205 has been posted since March 3, 2026: the date it was posted, and any web publishing log, content management system record, or internal communication reflecting the posting event (for example, a ticket, change request, or email to city web staff). Responsive-see attached Lexipol Release ticket

3. Records reflecting the status of the publication work described in the March 3, 2026 response — for example, internal communications, task assignments, or status updates between Police Technical Services, the Department's policy custodian, the City Communications office, or city IT concerning posting SOP 205 (and any other SOPs the Department considers subject to the same posting obligation) between February 23, 2026 and the date this request is processed. No Responsive records

4. Any records identifying other SMPD Standard Operating Procedures that the Department considers subject to conspicuous posting under SOP 205.1, Civil Code § 1798.90.51(b), or Department practice. The SOP index, table of contents, or equivalent listing is responsive.
Responsive: https://www.cityofsanmateo.org/4331/Accountability

5. If SOP 205 or any other SOP has been posted since March 3, 2026, the URL(s) at which those documents are posted. Responsive: https://www.cityofsanmateo.org/4331/Accountability

6. Any legal memorandum, risk assessment, compliance analysis, or written position — prepared by or for the Department, the City Attorney's office, or City administration — addressing the Department's obligations under SOP 205.1 and Civil Code § 1798.90.51(b) regarding conspicuous posting of SOP 205 and Policy 463, or addressing the Department's compliance status with those obligations. Drafts, memos, email analyses, and briefing materials are responsive. Responsive-See attached

Anticipated exemption issues:

** Gov. Code § 7923.600 (investigation records). A URL, a posting date, and routine web-publishing workflow records are not records of investigation.*

** Civil Code § 1798.90.55(b). The statute restricts sharing of ALPR information — license plate data, reads, hit notifications, and associated access records. A public URL where an ALPR policy document is posted, and administrative records about posting that document, are not ALPR information as defined by § 1798.90.5(c). The same statutory scheme affirmatively requires the policy itself to be posted conspicuously on the agency website (§ 1798.90.51(b)(1)); § 1798.90.55(b) cannot coherently be invoked to withhold the URL at which a document the statute mandates be public has been published.*

** Deliberative process. Items 2 and 3 concern the execution of a publication decision the Department has already publicly announced (March 3, 2026 response to W012198-022326), not pre-decisional deliberation about whether to post.*

If any portion is denied, please provide specific exemption citations per Gov. Code § 7922.540. If volume is burdensome, please contact me to narrow scope rather than denying categorically.

Thank you.

We have made a good faith and diligent effort to complete your request, in which responsive records have been collected. These records are available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request **W012571-042026** closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/20/2026 1:41:18 AM, Brian C wrote:

Request Created on Public Portal

On 4/20/2026 1:41:16 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 4/20/2026 and given the reference number **W012571-042026** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.**

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Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.